

[*or the cause*] has been entered in the Cause Book with the Registrar for argument [*or hearing*], and stating the day on which the same is to be argued [*or heard*]. And that such notice shall be served eight days before the day of argument [*or hearing*], and that it shall be the duty of the party entering such [*plea or*] demurrer, [*or cause*] to be argued [*or heard*], at the time of entering thereof to furnish the Registrar with the day on which the same is to be argued [*or heard*], in order that the same may be entered in the Cause Book.

The 111th Order of 1842, under which the Plaintiff had a time, within which to set down the demurrer, is expressly repealed, and 97th Order of 1842, allowing the Defendant to set it down after ten days, is also abolished, being not "consistent with" the above 26th Order. The demurrer must now be set down and disposed of.

The above language of this Order, so far as it abolishes the subpœna to hear judgment, is not now in force, because the 69th New Order establishes the practice of Subpœnas to hear judgment. The rule does not apply to pleas, because they are abolished. And it does not apply to setting down Causes, because the 69th New Order provides for a different kind of notice, namely a service of the Subpœna to hear judgment. But, although the 69th Order says that Demurrers as well as Causes may be set down in vacation, it does not provide for any notice or Subpœna in respect of demurrers, and therefore as to them, we have to refer to the above Order. The 69th Order says that "*The party setting down a Cause*" &c., must sue out a Subpœna, but it does not make any provision of the kind for the setting down of demurrers.

The above Order only applies to demurrers.

69th new Order requires no subpœna ad audiendum for the hearing of demurrers.

The Defendant may couple a demurrer with an answer, at any time within the time for answering; but the demurrer must not be to the whole material part of the Bill with a mere denial of fraud and combination. Some fact must be admitted, traversed or denied. (*Wetherhead vs. Blackburn*, 2 Vesey and Beames 123; *Tomkin vs. Lethbridge*, 9 Vesey 179, 463; *Baker vs. Mellish*, 11 Vesey 73).